

M/S Om Heem Enterprises v. State of U.P. and 3 Others

Allahabad High Court · Division Bench · 5 December 2023 · 2023:AHC:230295-DB · Writ - C No. 39816 of 2023 · **Writ petition allowed; Executive Engineer directed to consider the new-connection application within ten days of production of a certified copy, in light of Clauses 4.4(a)(i) and 4.39 and the Division Bench order dated 26.5.2014**

HEADNOTE

An occupier cannot be refused consideration of a new electricity connection under Clause 4.4(a)(i) of the U.P. Electricity Supply Code, 2005 merely because ownership of the premises is disputed or because the applicant is not presently the owner. As quoted by the Court, the clause accepts proof of occupancy and, where ownership is in litigation, requires a copy of the appropriate court's order to be enclosed. The licensee did not deny that M/S Om Heem Enterprises occupied the Ghaziabad shop. Following its Division Bench order of 26 May 2014 in Writ-C No. 28295 of 2014, the Court held that an occupier has a legal right to a connection and that supply cannot be refused solely for want of the owner's consent. Permanent disconnection of an earlier prepaid connection for failure to recharge does not, under Clause 4.39, bar a fresh connection: that clause prohibits reconnection and requires the consumer to apply anew. The petitioner had applied for a new connection, not reconnection. The writ was allowed by directing the Executive Engineer to consider the application in light of those observations within ten days of a certified copy. The Court did not itself grant the connection or decide the pending title suit.

FACTUAL SUMMARY

M/S Om Heem Enterprises sought a mandamus to Paschimanchal Vidyut Vitran Nigam Limited, Meerut, for a prepaid connection to Shop No. C-5, first floor, R.D.C., Rajnagar, Ghaziabad. It had occupied the shop first as a tenant and then under an agreement to sale dated 30 October 2014, paying Rs.48,50,000 against an agreed Rs.43,50,000. A prepaid meter was installed in a portion still with the landlord. The petitioner alleged that the landlord locked that portion so the meter could not be recharged, after which the licensee permanently disconnected it. The petitioner claimed to remain in possession. Original Suit No. 121 of 2022, on its rights in the premises, was pending before the Civil Judge (Senior Division), Ghaziabad.

The new-connection application was rejected for an ownership dispute, as recorded on the corporation website (Annexure 7). The petitioner relied on Clauses 4.4 and 4.39 of the U.P. Electricity Supply Code, 2005 as an occupier. On instructions, the licensee said the prepaid supply had been permanently disconnected because it was not recharged for six months, and because ownership was disputed.

REUSABLE CONSTRUCTIONS

1. Under Clause 4.4(a)(i) of the U.P. Electricity Supply Code, 2005, an occupier is entitled to be considered for a new electricity connection and cannot be denied one only because ownership of the premises is in dispute or because the applicant is not presently the owner. Where ownership is in litigation, the clause requires a copy of the appropriate court's order to be enclosed. ¶ 7-8
2. An occupier has a legal right to an electricity connection, and the licensee cannot refuse supply solely for want of the owner's consent. ¶ 9
3. Permanent disconnection of a previous connection does not bar a fresh connection. Under Clause 4.39 it prohibits reconnection of that supply and requires the consumer to apply for a new connection; an application for a new connection is not a claim for reconnection. ¶ 10

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4(a)(i)

ownership dispute or want of present title is not a ground to deny an occupier consideration of a new connection

QUESTION

Can a new electricity connection be denied to an occupier only because ownership of the premises is disputed or because the applicant is not presently the owner?

HOLDING

No. The licensee did not deny that the petitioner occupied the shop. Clause 4.4(a)(i), as quoted, requires the new-connection application to be accompanied by proof of ownership or proof of occupancy, and, where ownership is in litigation, a copy of the appropriate court's order. The petitioner was entitled to be considered for a connection and could not be denied one only because of the ownership dispute or because it was not presently the owner. The Court followed its Division Bench order dated 26.5.2014 in Writ-C No. 28295 of 2014, that an occupier has a legal right to a connection and that the licensee cannot refuse supply solely for want of the owner's consent. The petition was allowed. Respondent no. 2, the Executive Engineer, was directed to consider the new-connection application in light of those observations and that judgment within ten days of production of a certified copy. ¶ 7-9, 11-12

QUALIFIER

The Court directed consideration. It did not mandamus grant of the connection, examine whether the application was complete, or decide Original Suit No. 121 of 2022.

FLAG Merits order of 5.12.2023 is unnumbered. Pins are sequential blocks of that order only: 1 heard; 2 prayer; 3 occupation, agreement to sale, prepaid meter, lock and permanent disconnection; 4 OS 121 of 2022 and rejection for ownership dispute (Annexure 7); 5 argument on Clauses 4.4 and 4.39; 6 licensee's instructions (non-recharge for six months and ownership dispute); 7 occupation not denied and text of Clause 4.4(a)(i); 8 ratio on 4.4(a)(i); 9 Writ-C No. 28295 of 2014 quoted; 10 Clause 4.39; 11 petition allowed; 12 direction to the Executive Engineer. The order of 20.11.2023 (numbered paras 1-2) only adjourned the matter to 5.12.2023. Neutral citation 2023:AHC:230295-DB heads the 5.12.2023 order. Operative paragraph writes 'Paschimanchal Vidyut Vitran Limited'; the body writes 'Paschimanchal Vidyut Vitran Nigam Limited'. Annexure 4.2 is named inside the quoted clause as one occupancy document and is not separately applied. Other catalog hits are false positives.

HOLDING-UNIT · UP-2005::4.39

permanent disconnection bars reconnection and requires a new-connection application; it does not bar that application

QUESTION

Does permanent disconnection of a prepaid connection for failure to recharge bar the consumer from a new connection?

HOLDING

No. The licensee's stand that there is no provision for a new connection once a previous prepaid connection is not recharged and is therefore permanently disconnected was held erroneous in light of Clause 4.39. Permanent disconnection only prohibits reconnection and requires the consumer to apply for a new connection. The petitioner had applied for a new connection, not reconnection. Consideration of that application was directed. ¶ 6, 10

QUALIFIER

The Court did not decide whether the disconnection was caused by the landlord locking the meter or by six months' failure to recharge. It treated permanent disconnection as a fact and applied Clause 4.39 to its consequence.

FLAG Clause 4.39 is cited by number. The Court paraphrased it and did not set out its text. Keyed to UP-2005::4.39. The six-month non-recharge statement is the licensee's instruction, not a construction of Clause 4.38.

PRINCIPLE TAGS

pending-private-dispute-no-ground-to-deny-supply Rejection of the new-connection application because ownership of the shop was disputed, with Original Suit No. 121 of 2022 pending, was held unlawful. An occupier whose occupation is not denied cannot be refused a connection only on that ground. Lead authorities: *Division Bench judgment in Writ - C No. 28295 of 2014*. ¶ 4, 7-9

owner-consent-not-a-bar-to-supply The Court followed the Division Bench holding that an occupier has a legal right to a connection and that the licensee cannot refuse supply solely for want of the owner's consent, and applied it to a refusal based on an ownership dispute and want of present title. Lead authorities: *Division Bench judgment in Writ - C No. 28295 of 2014*. ¶ 8-9

reconnection-available-after-permanent-disconnection-clause-4.39

Reconnection of the permanently disconnected

prepaid supply was not available. Clause 4.39 was held to prohibit reconnection and to require a fresh application; the licensee's plea that permanent disconnection itself barred a new connection was rejected because the petitioner had applied for a new connection. ¶ 10

new-connection-duty-to-consider

The Executive Engineer, respondent no. 2, was directed to consider the new-connection application in light of Clause 4.4(a)(i), Clause 4.39 and the order dated 26.5.2014 in Writ-C No. 28295 of 2014. ¶ 11-12

pending-new-connection-consider-in-accordance-with-code

The writ court did not grant the prepaid connection. It allowed the petition by directing consideration within ten days of production of a certified copy. ¶ 11-12

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE NEW PREPAID CONNECTION MUST BE GRANTED

The Executive Engineer was directed to consider the application in light of the Court's observations. Completeness of the application, fees, and enclosure of the court-order copy were not examined, and no mandamus to energise was issued. ¶ 11-12

NOT DECIDED — TITLE OR OWNERSHIP OF THE SHOP, INCLUDING RIGHTS UNDER THE AGREEMENT TO SALE DATED 30.10.2014

Left to Original Suit No. 121 of 2022, pending before the Civil Judge (Senior Division), Ghaziabad. The Court decided only that the dispute was not a ground to deny consideration of the connection. ¶ 3-4, 8

NOT DECIDED — WHETHER THE PREPAID METER WAS PERMANENTLY DISCONNECTED BECAUSE THE LANDLORD LOCKED IT OR BECAUSE IT WAS NOT RECHARGED FOR SIX MONTHS

Both accounts were recorded. The Court treated permanent disconnection as a fact and held that it does not bar a new-connection application. ¶ 3, 6, 10

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Division Bench judgment in Writ - C No. 28295 of 2014</i> Writ - C No. 28295 of 2014, order dated 26 May 2014 Allahabad High Court (Division Bench)	An occupier of the premises as a tenant has a legal right to obtain an electricity connection, and the licensee is under an obligation to give the connection; it cannot be refused solely for want of consent of the owner or landlord.		Court	Followed

SCJ-3308 · M/S Om Heem Enterprises v. State of U.P. and 3 Others · 2023:AHC:230295-DB · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.